

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: _____

Date Filed: _____

KERRY MITCHELL,

Plaintiff designates
Kings County

Plaintiff,

The basis of Venue is
CPLR §504

-against-

S U M M O N S

THE CITY OF NEW YORK, Det. JOSEPH BORRERO and
Det. ASIM KARIM,

Plaintiff resides at:
419 14th Street
Brooklyn, NY 11215

Defendants.

County of Kings

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a Notice of Appearance on the plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: April 12, 2023



JORDAN W. TUCKER

Attorney for Plaintiff

26 Court Street

Brooklyn, New York 11242

(718) 875-4805

Addresses of Defendants:

The City of New York
100 Church Street
New York, New York
10007

Det. Joseph Borrero
NYPD 71st Precinct
Detective Squad
421 Empire Boulevard
Brooklyn, New York 11225

Det. Asim Karim
NYPD 71st Precinct
Detective Squad
421 Empire Boulevard
Brooklyn, New York 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KERRY MITCHELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, Det. JOSEPH BORRERO
and Det. ASIM KARIM,

Defendants.

Index No.:

COMPLAINT

Plaintiff, Kerry Mitchell, by her attorney, Jordan W. Tucker, as and for her Complaint, hereby alleges, upon information and belief, as follows:

1. Plaintiff was, at all times hereinafter mentioned, a resident of the County of Kings, City and State of New York.

2. Defendant, the City of New York was, and remains, a Municipal Corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. The New York City Police Department, was, and remains an agency of defendant, The City of New York, duly organized and existing under and by virtue of the laws of the State of New York.

4. Defendant, Det. Joseph Borrero, was, and still is, a police officer under the employ of defendant The City of New York, and was acting in the course of his employment with the New York City Police Department at all times herein mentioned.

5. Defendant, Det. Asim Karim, was, and still is, a police officer under the employ of defendant The City of New York, and was acting in the course of his employment with the New York City Police Department at all times herein mentioned.

6. Plaintiff has complied with all statutory conditions precedent to commencing an action, in that she has filed a notice of claim on November 10, 2022, with defendant, which was

within ninety (90) days of the date the claim herein accrued, and that more than thirty (30) days have elapsed since the presentation of said notice of claim and defendant has neglected or refused to adjust or make payment on said claims.

7. Plaintiff has appeared for an oral examination pursuant to General Municipal Law §50-h.

8. This action has been commenced within one (1) year and ninety (90) days of the date plaintiff's causes of action herein.

9. On or about the 4th day of November, 2022, plaintiff was falsely arrested outside of her home, located at 419 14th Street, in the County of Kings, City and State of New York and was thereafter maliciously prosecuted under Docket Number SCR-75836-22/001, until the 5th day of April, 2023, when her criminal case was dismissed on motion (Exhibit "A").

**AS AND FOR A FIRST CAUSE OF ACTION
FALSE ARREST/IMPRISONMENT**

10. Defendants, their agents, servants and/or employees, arrested and imprisoned plaintiff by detaining her, handcuffing her and placing her in a cell, operated by the defendant, The City of New York and/or its governmental agency, the New York City Police Department.

11. Defendants did not possess a warrant for said arrest and imprisonment of plaintiff.

12. Defendants intentionally arrested and imprisoned plaintiff herein.

13. Defendants did not have the right to arrest and imprison plaintiff.

14. Defendants did not have probable cause to arrest and imprison plaintiff.

15. Plaintiff did not consent to said arrest and imprisonment.

16. Plaintiff was conscious of said arrest and imprisonment.

17. Defendants did not otherwise possess a privilege to arrest and imprison plaintiff.

18. As a result of said arrest and imprisonment, plaintiff sustained injuries including, but

not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame, embarrassment and other suffering as well as personal and public humiliation, which required medical/psychological/psychiatric attention, as well as damages for future medical and lost wages, all to plaintiff's damage.

19. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION
ASSAULT AND BATTERY**

20. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbers "1" through "19" inclusive, with the same force and effect as if fully set forth at length herein.

21. Defendants assaulted and battered plaintiff by intentionally offensively touching and searching plaintiff.

22. Plaintiff did not consent to the assault and battery and offensive touching.

23. As a result of said assault and battery, plaintiff sustained injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame, embarrassment and other suffering as well as personal and public humiliation, which required medical/psychological/psychiatric attention, as well as damages for future medical and lost wages, all to plaintiff's damage.

24. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limit of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION
MALICIOUS PROSECUTION**

25. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbers "1" through "24" inclusive, with the same force and effect as if fully set forth

at length herein.

26. Defendants maliciously prosecuted plaintiff by complaining, commencing and/or continuing the criminal proceeding against plaintiff under docket number SCR-75836-22/001 within a criminal court action ending in favor of the plaintiff, with the absence of probable cause for the criminal proceeding and by instigating, instituting and continuing the criminal proceeding with actual malice.

27. As a result of said arrest and imprisonment, plaintiff sustained injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame, embarrassment and other suffering as well as personal and public humiliation, which required medical/psychological/psychiatric attention, as well as damages for future medical and lost wages, all to plaintiff's damage.

28. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limit of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION
CONSTITUTIONAL VIOLATIONS**

29. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbers "1" through "28" inclusive, with the same force and effect as if fully set forth at length herein.

30. As a result of the foregoing, defendants are guilty of violating plaintiff's constitutional rights under the U.S. Constitution, Bill of Rights and the New York State Constitution.

31. As a result of said arrest and imprisonment, plaintiff sustained injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame, embarrassment and other suffering as well as personal and public humiliation, which required medical/psychological/psychiatric attention, as well as damages for future medical and lost wages,

all to plaintiff's damage.

32. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limit of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS**

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbers "1" through "32" inclusive, with the same force and effect as if fully set forth at length herein.

34. To the extent they were not intentional, defendants' acts against plaintiff constituted extreme or outrageous behavior that caused trauma and medical/psychological damage to the plaintiff herein.

35. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limit of all lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbers "1" through "35" inclusive, with the same force and effect as if fully set forth at length herein.

37. Defendants' acts against plaintiff constituted extreme, outrageous and/or reckless behavior that caused trauma and medical/psychological damage to the plaintiff herein.

38. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limit of all lower courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION
PROPERTY LOSS**

39. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbers "1" through "38" inclusive, with the same force and effect as if fully set forth at length herein.

40. As a part of defendants' investigation and prosecution, plaintiff's property, including two automobiles, two cell phones and other items of value were confiscated and not returned.

41. That plaintiff has lost the value of said items as well as the use of the said items to her financial detriment.

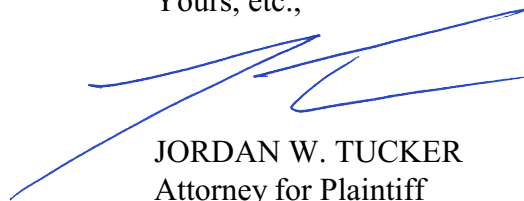
42. That under the guise of a continuing investigation, defendants continue to hold and/or convert plaintiff's property, even though the criminal action has been fully terminated in her favor and there is no legitimate continuing investigation.

43. That by reason of the foregoing, the plaintiff has been damaged in a sum that exceeds the jurisdictional limit of all lower courts.

WHEREFORE, plaintiff demands judgment against defendants in the First, Second, Third, Fourth, Fifth, Sixth and Seventh Causes of Action in amounts that exceed the jurisdictional limits of all lower courts, which otherwise have jurisdiction, such amounts to be determined upon the trial of this action, for punitive damages, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
April 12, 2023

Yours, etc.,



JORDAN W. TUCKER
Attorney for Plaintiff
26 Court Street
Brooklyn, New York 11242
(718) 875-4805